

25STCV11101 25STCV11101

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV11101 Hearing Date: September 3, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 3, 2026 TRIAL

DATE: Not set.

CASE: S David Sedaghat v. Jerry Roles, et al.

CASE

NO.: 24STCV27659

DEMURRER TO

COMPLAINT

MOTION TO

STRIKE PORTIONS OF COMPLAINT

MOVING PARTY/PARTIES: Defendant Tarzana Post Acute, LLC

RESPONDING PARTY/PARTIES: None

PROOF OF SERVICE:

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Correct Address: Yes

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Served electronically on March 25,
2026 for September 3, 2026 hearing date

CASE HISTORY:

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April 16, 2025: Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff

S David Sedaghat ("Plaintiff"), as a self-represented litigant, initiated this action based on the alleged wrongful death of his father while his father was a resident of a long-term care facility. Defendant Tarzana Health & Rehabilitation ("Defendant") demurs to the complaint. Defendant also moves to strike portions of the complaint. Plaintiff has not opposed the motions.

TENTATIVE RULING:

Defendant's

demurrer to the complaint is SUSTAINED with leave to amend as to the first, second, third, fourth, eighth, tenth, and eleventh causes of action in the complaint. Defendant's demurrer is SUSTAINED without leave to amend as to the sixth, seventh, and ninth causes of action in the complaint.

To

the extent it is not moot, Defendant's motion to strike punitive damages allegations from Plaintiff's complaint is GRANTED with leave to amend.

Moving

party to give notice.

DISCUSSION:

Demurrer to Complaint

"It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must "liberally construe[]" the allegations of the complaint. (Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

Standing
to sue

To
the extent that Plaintiff seeks to maintain this action as the successor-in-interest of Plaintiff's deceased father, Plaintiff must file an affidavit or declaration that complies with the requirements of Code of Civil Procedure section 377.32. (Code Civ. Proc. § 377.32; see In re A.C. (2000) 80 Cal.App.4th 994, 1002-1003.) Plaintiff has not done so. Accordingly, Plaintiff fails to allege he has
standing to assert claims as the successor-in-interest of his deceased father.

Statute
of limitations

Defendant purports to demur based on
the statute of limitations. However, as
Defendant concedes, "Plaintiff's Complaint contains no dates" (Memorandum of Points and Authorities in Support of Demurrer, p. 9.) Accordingly,
the Court cannot reach the issue of whether the statute of limitations bars
Plaintiff's claims on demurrer.

First
cause of action: wrongful death

To
state a cause of action for wrongful death, Plaintiff need only allege that
Defendant's wrongful acts caused the death of Plaintiff's father. (Norgart v. Upjohn Co. (1999) 21 Cal.4th 383, 404.) Plaintiff's allegations suffice to support the cause of
action for wrongful death. (Complaint, ¶
22.) However, as set forth above,

Plaintiff fails to allege he has standing to sue as his father's successor-in-interest. Accordingly, the Court sustains the demurrer to the first cause of action with leave to amend.

Second

cause of action: elder abuse

Plaintiff's second cause of action

is for elder abuse. The Elder Abuse and

Dependent Adult Civil Protection Act defines an elder as "any person residing in this state, 65 years of age or older." (Welf. & Inst. Code, § 15610.27.)

The statute prohibits "[a]buse of an elder or a dependent adult[.]" which is defined as "physical abuse, neglect, financial abuse, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering[.]" (Welf. & Inst. Code, § 15610.07.) Because it is a statutory claim, Plaintiff must allege the cause of action for elder abuse with particularity. (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790.) Plaintiff

alleges Defendant's actions caused his father's "being abused, emotionally and physically , suffering pain , infection, unjustified repeated falls,[] malnutrition an[d] dehydration , harm from [] harmful[] medication and lack of proper and urgent medical care" (Complaint,

¶ 24.) Plaintiff fails to allege specific facts to support the claim against Defendant.

Accordingly, the Court sustains the demurrer to the second cause of action with leave to amend.

Third

cause of action: Unruh Civil Rights Act

Plaintiff's third cause of action

is under the Unruh Civil Rights Act. To

state a cause of action under the Unruh Civil Rights Act, Plaintiff must allege that Defendant is a business establishment that intentionally denied Plaintiff full and equal accommodations, advantages, facilities, privileges, or services based on Plaintiff's sex, race, color, religion, ancestry, national origin, disability, medical condition, marital status, or sexual orientation. (Civ. Code, § 51, subd. (b).) Plaintiff does

not allege facts in support of the third cause of action to show how or on what basis Defendant purportedly discriminated against Plaintiff's late father. (See Complaint, ¶ 26.) Furthermore, as set forth above, Plaintiff

fails to allege he has standing to sue as his father's successor-in-interest. Accordingly, the Court sustains the demurrer to the third cause of action with leave to amend.

Fourth

cause of action: negligence and negligent supervision

In support of the fourth cause of action for negligence, Plaintiff alleges, "Defendant[] [was] negligent in providing adequate support, care, rehabilitation and monitoring. Further defendant[] had a duty to have a supervisory supervision of the staff and failed to implement proper and adequate environment of support, care and supervision leading to decedent suffering multiple episodes of infection, falls, broken bones, dehydrating, malnutrition, becoming substantially underweight, unable to walk and ill." (Complaint, p. 6.) There is no requirement that Plaintiff plead negligence with particularity. As such, Plaintiff's allegations suffice.

However, as set forth above, Plaintiff fails to allege he has standing to sue as the successor-in-interest of his father. Accordingly, Plaintiff must amend. The Court sustains the demurrer to the fourth cause of action with leave to amend.

Fifth

cause of action: failure to warn

Defendant demurs to the fifth cause of action. However, Plaintiff does not assert the fifth cause of action against Defendant. Accordingly, Defendant's demurrer to the fifth cause of action is moot.

Sixth

cause of action: reckless endangerment

Plaintiff's sixth cause of action is for reckless endangerment. This is not a recognized cause of action. As such, the Court sustains the demurrer to the sixth cause of action without leave to amend.

Seventh

cause of action: unjust enrichment

Plaintiff's seventh cause of action

is for unjust enrichment. Unjust

enrichment is not a cause of action, but rather a remedy. (Melchior v. New Line Productions, Inc.

(2003) 106 Cal. App. 4th 779, 794.) The

Court sustains the demurrer to the seventh cause of action without leave to amend.

Eighth

cause of action: fraudulent concealment

Plaintiff's eighth cause of action

is for fraud. Plaintiff must allege

fraud with particularity. "This means:

(1) general pleading of the legal conclusion of fraud is insufficient; and (2)

every element of the cause of action for fraud must be alleged in full,

factually and specifically, and the policy of liberal construction of pleading

will not usually be invoked to sustain a pleading that is defective in any

material respect." (Wilhelm v. Pray,

Price, Williams & Russell (1986) 186 Cal.App.3d 1324, 1331.) There are four circumstances in which

nondisclosure or concealment may constitute actionable fraud: (1) when the

defendant is in a fiduciary relationship with the plaintiff; (2) when the

defendant had exclusive knowledge of material facts not known to the plaintiff;

(3) when the defendant actively conceals a material fact from the plaintiff;

and (4) when the defendant makes partial representations but also suppresses

some material facts." (LiMandri v.

Judkins (1997) 52 Cal.App.4th 326, 336, internal quotations and citations

omitted.) Here, Plaintiff alleges that

Defendant "conspired to conceal the tacit conspiracy to harm patient and

deprive proper care and rehabilitation and instructed and threatened other

employees to go along with the conspiracy."

(Complaint, p. 7.) Plaintiff does

not allege specific facts to support these conclusory allegations. Plaintiff has not alleged his eighth cause of action with particularity. The Court

sustains the demurrer to the eighth cause of action with leave to amend.

Ninth

cause of action: conspiracy to breach duty of care

Plaintiff's ninth cause of action

is for conspiracy to breach duty of care.

This is not a recognized cause of action. (*Favila v. Katten Muchin Rosenman LLP* (2010)

188 Cal.App.4th 189, 206; see also *Patrick v. Alacer* (2008) 167

Cal.App.4th 995, 1016, fn.11.) As such,

the Court sustains the demurrer to the ninth cause of action without leave to amend.

Tenth

cause of action: intentional and negligent infliction of mental and emotional distress

Per California Rules of Court, rule

2.112, each cause of action in Plaintiff's complaint must be "separately stated

. . . ." (Cal. Rules of Court, rule

2.112.) Plaintiff cannot lump together

causes of action for intentional infliction of emotional distress and negligent

infliction of emotional distress as one cause of action. Further, Plaintiff's complaint does not

include any allegations in support of this cause of action. Plaintiff must amend. The Court sustains the demurrer to the tenth cause of action with leave to amend.

Eleventh

cause of action: Racketeer Influenced and Corrupt Organizations Act

Plaintiff's eleventh cause of

action is under the Racketeer Influenced and Corrupt Organizations Act, or

RICO. To state a claim under RICO,

Plaintiff must allege the conduct of an enterprise that caused injury to

Plaintiff's business or property through a pattern of racketeering activity

that affects interstate commerce. (*McMartin*

v. Children's Institute International (1989) 212 Cal.App.3d 1393,

1406.) Plaintiff alleges, "conduct of [D]efendant

w[as] organized, to recklessly provide substandard care with reckless disregard

of patient health and safety." (Complaint,

p. 8.) Plaintiff alleges no facts to

support this conclusion. Furthermore,

Plaintiff does not allege that Plaintiff's business or property sustained

damages. The Court sustains the demurrer

to the eleventh cause of action with leave to amend.

Motion to strike portions of complaint

Sustaining Defendant's demurrer

renders the motion to moot. However, to the extent it is not moot, the Court grants the motion to strike the punitive damages allegations with leave to amend.

Any party, within the time allowed

to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ.

Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the Court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading;

or (2) strike out all or any part of any pleading not drawn or filed in

conformity with the laws of California, a court rule, or an order of the Court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

In ruling on a motion to strike

punitive damages, "judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (Coll.

Hosp., Inc. v. Superior Court (1994) 8 Cal.4th 704, 721.) Per Civil Code section 3294, a plaintiff must allege that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).) "Malice is defined in the statute as conduct

intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others."

(Coll. *Hosp., Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) "The mere allegation an

intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (*Grieves v. Superior Ct.* (1984) 157 Cal.App.3d 159, 166, internal citations and footnotes omitted.)

"[T]he imposition of punitive

damages upon a corporation is based upon its own fault. It is not imposed vicariously by virtue of the fault of others." (*City Products Corp. v. Globe*

Indemnity Co. (1979) 88 Cal.App.3d 31, 36.)

“Corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive. An award of punitive damages against a corporation therefore must rest on the malice of the corporation’s employees. But the law does not impute every employee’s malice to the corporation. Instead, the punitive damages statute requires proof of malice among corporate leaders: the officers, directors, or managing agents.” (Cruz v. Home Base (2000) 83 Cal.App.4th 160, 167, internal quotations and citation omitted.)

Here, Plaintiff fails to allege specific facts to show that Defendant’s officers, directors, or managing agents acted with malice. As such, Plaintiff’s allegations do not support a claim for punitive damages. For the same reason, Plaintiff’s allegations do not support exemplary damages.

Defendant moves to strike Plaintiff’s allegations that the various Defendants acted as agents of each other. The Supreme Court of California has criticized allegations like this as “egregious examples of generic boilerplate” (Moore v. Regents of University of California (1990) 51 Cal.3d 120, 134, fn. 12.) However, “such allegations may be necessary, especially at the outset of a lawsuit, before discovery.” (Barsegian v. Kessler & Kessler (2013) 215 Cal.App.4th 446, 451, internal quotations and citations omitted.) For pleading purposes, Plaintiff’s agency allegations suffice.

Defendant also moves to strike allegations it contends are irrelevant or inflammatory. A motion to strike cannot be used as a “‘line item veto’ for the civil defendant” (PH II, Inc. v. Superior Court (1995) 33 Cal.App.4th 1680, 1683.) Defendant is not entitled to remove any allegation it contends is superfluous. The motion to strike these allegations is without merit.

Accordingly, Defendant’s demurrer to the complaint is SUSTAINED with leave to amend as to the first, second, third, fourth, eighth, tenth, and eleventh causes of action in the complaint. Defendant’s demurrer is SUSTAINED without leave to amend as to the sixth, seventh, and ninth causes

of action in the complaint.

To

the extent it is not moot, Defendant's motion to strike punitive damages allegations from the complaint is granted with leave to amend.

Plaintiff

is to file an amended complaint within 10 days.

Moving

party to give notice.

IT

IS SO ORDERED.

Dated: September 3, 2026 _____

Rolf

M. Treu

Judge

of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.